

24STCP003862 24STCP003862

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Case Number: 24STCP003862 Hearing Date: September 10, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JOHN DOE,

Plaintiff(s),

vs.

BOARD

OF TRUSTEES OF THE CALIFORNIA STATE UNIVERSITY,

Defendant(s).

Case No.:

24STCP003862

Hearing Date:

September 10, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner John Doe ("Petitioner")

petitions for a writ of administrative mandate against Respondent Board of Trustees of the California State University ("Respondent") directing it to set aside its decision to expel him.

The petition for writ of mandate
is denied.

I.

Factual Background

Petitioner's verified petition alleges

that Petitioner was an undergraduate student at California Polytechnic State University, San Luis Obispo ("University") on track to earn a bachelor's degree in June 2023. (Pet., ¶ 19.)

On May 15, 2023, the University's Civil Rights & Compliance Office ("CRCO") received a complaint ("Complaint") that Petitioner sexually assaulted another student ("Complainant") on or about March 18, 2023. (Pet., ¶ 20.) On June 6, 2023, Petitioner and Complainant received a notice of Referral of Formal Complaint to CSU Nondiscrimination Policy – Track 2 pursuant to the University's Procedures for Complaints of Discrimination, Harassment, Sexual Misconduct, Sexual Exploitation, Dating Violence, Domestic Violence, Stalking, and Retaliation Made Against a Student ("Procedures"). (Pet., ¶ 23.)

By the end of the term on June 16, 2023, Petitioner successfully completed all remaining criteria to earn his degree, but the University deferred conferring his degree pending resolution of the investigation and any disciplinary proceedings. (Pet., ¶ 24.) Complainant completed her education and received her degree in June 2023. (Pet., ¶ 32.)

From June 2023 through November 2023, CRCO Associate Director Kaitlyn Blakey ("Director Blakey") investigated Complainant's allegations. (Pet., ¶ 25.) On August 21, 2023, Petitioner submitted a written statement disputing the allegations. (Pet., ¶ 26.) On November 9, 2023, Director Blakey completed her CSU Nondiscrimination Policy, Track 2 – Final Investigation Report ("Final Report") which she submitted to CRCO

Assistant Vice President Maren Hufton (“VP Hufton”). (Pet., ¶ 27.)

On January 30 and 31, 2024, Hearing Officer Adrienne Publicover (“Hearing Officer”) presided over the hearing on the Complaint. (Pet., ¶ 29.) Petitioner denied all allegations of sexual misconduct.

On February 21, 2024, the Hearing Officer issued her Hearing Decision Report accepting all Complainant’s allegations and concluding Petitioner committed sexual misconduct. (Pet., ¶ 30.) On March 11, 2024, the Hearing Officer recommended expulsion (together with the Hearing Decision Report, “Decision”). (Pet., ¶ 33.)

On March 22, 2024, Petitioner appealed the findings and sanction to the Office of the Chancellor. (Pet., ¶ 34.) On June 1, 2024,^[1] the Office of the Chancellor denied the appeal. (Pet., ¶ 35.)

II.

Procedural History

On November 26, 2024, Petitioner filed his verified petition. Proof of service on file shows Petitioner served the summons and petition on Respondent by personal service on December 2, 2024. On January 17, 2025, Respondent filed its answer.

On April 22, 2025, the Court set the hearing on the petition for October 7, 2025. The Court later continued that hearing to November 6, 2025. Per joint stipulation of the parties, the Court again continued the writ hearing to May 7, 2026. Meanwhile, on August 14, 2025, Petitioner filed his opening brief. On October 14, 2025, Respondent filed its opposition. On April 22, 2026, Petitioner filed his reply.

On May 6, 2026, the Court heard Respondent’s ex parte application to correct the administrative record, styled as a motion to augment. The Court granted the application and, on its own motion, continued the hearing on the petition to September 10, 2026. The Court ordered Respondent to file and serve a five-page supplemental brief no later than June 26, 2026. The Court ordered Petitioner to file and serve a five-page supplemental brief by July 27, 2026. On June 26, 2026, Respondent

filed its supplemental brief. On July 27, 2026, Petitioner filed his supplemental brief.

III.

Standard of Review

Code of Civil Procedure (“CCP”)

section 1094.5 is the administrative mandamus provision which structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass’n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15.). Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811.) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143; see CCP §1094.5(c).)

The right at issue is Petitioner’s interest in continuing his education at the University and obtaining his degree. Although higher education is an important interest, it is not a fundamental one. Courts have recognized that the value of higher education is “an interest of almost incalculable value” to enrolled students, and that attendance at a public university is “a benefit somewhat analogous to that of public employment.” (*Goldberg v. Regents of University of California* (1967) 248 Cal.App.2d 867, 876.) However, unlike food, shelter, or clothing, higher education is not considered a fundamental right. (*Gurfinkel v. Los Angeles Community College Dist.* (1981) 121 Cal.App.3d 1, 7 [addressing claimed fundamental rights in the community college context].)

Accordingly, a university’s factual findings in student disciplinary matters are reviewed under the substantial evidence standard. (*Doe v. University of Southern California* (2016) 246 Cal.App.4th 221, 239, 248–249; *Doe v. Regents of University of California* (2016) 5 Cal.App.5th 1055, 1073 [“UCSD”].) That standard applies equally to Respondent and the University in this case.

Under the substantial evidence

standard, a “court’s scrutiny of the agency’s factual findings is limited to a determination [of] whether those findings are supported by substantial evidence in light of the whole record.” (*Doe v. Regents of the University of*

California (2013) 216 Cal.App.4th 1474, 1485.) A decision is deemed to be supported by substantial evidence unless “no reasonable person could reach the conclusion reached by the [University], based on the entire record before it.” (UCSD at 1073.) In making that determination, the court accepts all evidence which supports the successful party, disregards the contrary evidence, and draws all reasonable inferences in favor of the findings. (Id. at 1073-74.) The “testimony of a single witness, even that of a party, is sufficient to provide substantial evidence to support a finding of fact.” (Id. at 1074 [citation omitted]; see also *Kearl v. Board of Medical Quality Assurance* (1986) 189 Cal.App.3d 1040, 1052.)

IV.

Analysis

Petitioner seeks a writ of mandate compelling Respondent to set aside its decision to expel him on the grounds that (1) withholding his degree pending the outcome of the investigation and any disciplinary proceedings was an abuse of discretion; (2) the penalty of expulsion was excessive; and (3) he did not receive a fair hearing.

1.

The University's Pre-Adjudication Withholding of Petitioner's Degree

Petitioner argues that the University abused its discretion by withholding his degree despite his completion of all required coursework. In support, he relies solely on a letter from the U.S. Department of Education Office for Civil Rights (“OCR”) advising the University of Virginia that withholding a degree based only on pending allegations does not comply with Title IX. This argument is unpersuasive. As Respondent points out, Petitioner's disciplinary proceedings were not conducted under Title IX, and the OCR letter specifically addresses the University of Virginia's Title IX grievance procedures.

In reply, Petitioner shifts focus and argues that the University violated California Code of Regulations (“CCR”), Title 5, section 41301(c), which states that “[t]he Chancellor shall adopt procedures to ensure students are afforded appropriate notice and an opportunity to be heard before the University imposes any sanction for a violation of the Student Conduct Code.” (CCR, tit. 5, § 41301(c).) This

argument also fails. Petitioner raised section 41301(c) for the first time in reply, depriving Respondent of the opportunity to respond.

More importantly, Petitioner's degree had not vested when the investigation began. By the University's own policy, "[t]here are eight general requirements which all students must meet in order to earn the bachelor's degree from Cal Poly and participate in commencement." (AR 946.) The eighth general requirement states:

"When an allegation has been made that a student has violated the Interim CSU Policy Prohibiting Discrimination, Harassment, Sexual Misconduct, Sexual Exploitation, Dating Violence, Domestic Violence, Stalking, and Retaliation, Revised December 24, 2021, or any of the Standards for Student Conduct (Title 5, section 41301 of the California Code of Regulations), and the student is under inquiry and/or investigation or a sanction has been applied for a violation, degree conferral may be impacted. If a student is expelled from the University, regardless of academic progress, including when a student has completed all academic requirements at the time of the expulsion, the student will not receive a degree. Expulsion means permanent separation from the University and no degree will be conferred." (AR 946.)

Because the investigation was pending, Petitioner had not satisfied all prerequisites for degree conferral. Although Petitioner characterizes the withholding of his degree as a "sanction," the record shows instead that Petitioner had not yet met the University's requirements to receive a degree. He therefore was not automatically entitled to degree conferral while the investigation and adjudication were unresolved.

As previously noted, the Court ordered the record corrected and allowed limited supplemental briefing on the newly included material. The added document is a procedure entitled "Student Conduct Process," which states:

This Procedure is established pursuant to California Code of Regulations, Title 5, Section 41301 et seq., and governs all Student disciplinary matters systemwide, except that as noted, specific Procedures apply for allegations involving Discrimination, Harassment, Retaliation, Sexual Misconduct, Sexual Exploitation, Domestic, Dating Violence, and Stalking, as set forth in Article IV of this Policy and in the CSU Policy

Prohibiting Discrimination, Harassment, Sexual Misconduct, Sexual Exploitation, Dating Violence, Domestic Violence, Stalking, and Retaliation (Nondiscrimination Policy).

(AR 983, footnote omitted.)

Respondent argues only that the policy “is significant because it comprises some of the applicable policies and procedures in this matter.” (Resp. Suppl. Br. at 2.) Petitioner argues that the policy is “largely irrelevant,” does not overcome Petitioner’s prior arguments, and in fact supports those arguments (Pet. Suppl. Br. at 3-7).

As with Petitioner’s arguments in opening and reply, Petitioner’s supplemental position rests on the assumption that he had already earned and was entitled to his degree. As explained above, this assumption is incorrect. Petitioner had not met the eighth general requirement, which requires resolution of qualifying allegations and the absence of expulsion before a degree may be conferred. Because Petitioner had not earned his degree, withholding it was not a sanction.

Accordingly, Petitioner has not shown that the University abused its discretion by withholding his degree while the proceeding was pending.

2.

Petitioner Received a Fair Hearing

Petitioner next contends that he did not receive a fair hearing because the Hearing Officer was biased, impermissibly shifted the burden to Petitioner to prove his own innocence, and penalized Petitioner for exercising his procedural rights.

The court reviews fairness of the administrative proceeding de novo. (*Nasha v. City of Los Angeles* (2004) 125 Cal.App.4th 470, 482, 22 Cal.Rptr.3d 772.) “The statute’s requirement of a ‘fair’ trial means that there must have been ‘a fair administrative hearing.’” (*Gonzalez v. Santa Clara County Dept. of Social Services* (2014) 223 Cal.App.4th 72, 96, 167 Cal.Rptr.3d 148.) Where student discipline is at issue, the university must comply with its own policies and procedures. (*Berman v. Regents of University of California* (2014) 229 Cal.App.4th 1265,

1271, 178 Cal.Rptr.3d 62.) The question whether the trial was “fair” encompasses pre-hearing and post-hearing events or procedures affecting the due process requirements of adequate notice and a meaningful opportunity to be heard. (See *Vollstedt v. City of Stockton* (1990) 220 Cal.App.3d 265, 273.) Under Government Code section 11513(b), each party has the right to call and examine witnesses, cross-examine opposing witnesses, and impeach any witness regardless of which party called him or her.

The trial court's independent evaluation of the fair trial issue is not a trial de novo; the court renders its independent judgment on the basis of the record. (*City of Fairfield v. Superior Court* (1975) 14 Cal.3d 768, 776.) Here, the burden is on Petitioner to show his hearing was unfair.

First, Petitioner asserts that the Hearing Officer was biased. To invalidate the University's disciplinary decision on this ground, Petitioner must demonstrate actual bias, not just “an inference or appearance of bias.” (*Doe v. Occidental College* (2019) 40 Cal.App.5th 208, 226.) Petitioner does not identify any actions or statements by the Hearing Officer demonstrating bias. Rather, he asks the Court to infer bias solely from the fact that the Hearing Officer reached an allegedly unreasonable conclusion. (Op. Br. at 15-16.) Petitioner has therefore not met his burden of establishing actual bias on the part of the Hearing Officer.

Petitioner next contends that the Hearing Officer impermissibly shifted the burden to Petitioner to prove his own innocence. Petitioner cites two portions of the administrative record to support this claim, each referencing Respondent's Nondiscrimination Policy. The Nondiscrimination Policy correctly states that the accused in a Title IX proceeding is presumed not responsible (AR 121), and that the University has the burden of gathering evidence sufficient to reach a determination (AR 81). These provisions do not establish that the Hearing Officer shifted the burden of proof to Petitioner.

If Petitioner's argument is that the Hearing Officer shifted the burden through her credibility analysis, the Court finds that characterization unsupported by the record. Credibility determinations in administrative proceedings necessarily involve evaluating a party's consistency and willingness to provide information. The Hearing

Officer's discussion of Petitioner's omissions does not demonstrate that she required Petitioner to disprove the allegations. Rather, these points appear in the Hearing Officer's explanation of why she found the Complainant's account more credible. The Nondiscrimination Policy explicitly assigns the University the burden of proof, and the Hearing Officer's written findings reflect that she credited the Complainant's testimony and corroborating witness statements as affirmative evidence of responsibility. Nothing in the decision suggests that she treated Petitioner's silence, strategy, or lack of detail as a substitute for proof by Respondent.[2]

Finally, Petitioner argues that the Hearing Officer penalized him for exercising his procedural rights, pointing to the following comment in the Hearing Officer's penalty recommendation:

"Moreover, Respondent declined to participate in the process until after he had the opportunity to review the Preliminary Investigation Report, and then he would only respond in writing. Respondent declined to meet and be interviewed by the investigator. People who have nothing to hide, hide nothing."

(AR 932.)

Standing alone, the Hearing Officer's statement may appear to penalize Petitioner for choosing not to participate in certain parts of the process. Read in context, however, it conveys something different. The comment appears in the portion of the Hearing Officer's analysis responding to Petitioner's post-hearing written submission challenging the sanction recommendation. (AR 931-32.) The Hearing Officer noted that, although she had already issued her decision finding Complainant credible and Petitioner not credible, Petitioner continued to attack Complainant's credibility and to insist he was innocent, even though responsibility had already been adjudicated. (AR 932.) After briefly summarizing the basis for her credibility determinations, the Hearing Officer included the challenged comment. (AR 932.)

In this context, the Court understands the comment as an observation that Petitioner, through his own strategic choices, declined several opportunities to bolster his credibility, such as giving earlier statements, participating in an interview with the investigator, or maintaining a consistent account throughout the process. The

Hearing Officer is not prohibited from noting how those choices affected her assessment of credibility.

In any event, Petitioner identifies only this single comment. There is no evidence of repeated remarks or a pattern of similar statements by the Hearing Officer. Because this one statement is susceptible to a reasonable, permissible interpretation, the Court is not persuaded that it reflects unfairness in the hearing. Accordingly, Petitioner has not met his burden.

3.

Imposing Expulsion Was Not a Manifest Abuse of Discretion

Finally, Petitioner contends that the penalty of expulsion was an abuse of discretion because it did not serve the goals of disciplinary sanctions as stated in CCR, Title 5, section 41301, and that the Hearing Officer improperly considered Petitioner's exercise of his procedural rights as an aggravating factor.[3]

In arguing that the Hearing Officer abused her discretion in recommending expulsion, citing CCR, title 5, section 41301, Petitioner asserts that "disciplinary sanctions serve the dual purposes of maintaining a safe and orderly campus environment and furthering the University's educational mission by addressing student behavior that threatens the safety, well-being, or rights of the University community." (Pet. Op. Br. at 13.) This appears to reference subsection (d) of CCR, Title 5, section 41301, which identifies the categories of individuals who may be sanctioned and the types of conduct subject to sanction.[4]

(CCR, tit. 5, §41301(d).) However, this subdivision does not establish the standard for choosing what sanction to impose.

The propriety of a penalty imposed by an administrative agency is a matter in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion. (Lake v. Civil Service Commission (1975) 47 Cal.App.3d 224, 228.) Neither an appellate court nor a trial court is free to substitute its discretion for that of the administrative agency concerning the degree of punishment imposed. (Nightingale v. State Personnel Board (1972) 7 Cal.3d 507, 515; UCSD, supra, 5 Cal.App.5th at 1106.)

“Moreover, ‘[i]t is only in the exceptional case, when it is shown that reasonable minds cannot differ on the propriety of the penalty, that an abuse of discretion is shown.’” (UCSD at 1106, quoting *Deegan v. City of Mountain View* (1999) 72 Cal.App.4th 37, 47.)

The Hearing Officer enumerated the factors she considered in making her recommendation, stating under each factor the relevant findings that influenced her conclusion. (AR 933-34.)

First, the Hearing Officer considered the severity of the offense, and the harm, or potential harm to the campus community or member of the campus community. (AR 932.) She found that Petitioner forcibly penetrated Complainant despite her clear rejections, a severe offense. (AR 932.) This finding was supported primarily by Complainant's testimony to the same. (AR 584.)

Second, the Hearing Officer discussed the actual or potential consequences of the behavior in question. (AR 933.) The Hearing Officer noted that Complainant had to have an STD test, requested a shift change to avoid Petitioner, experienced a change in her voice, experienced emotional distress including anxiety and panic attacks, and lost her friendship with Petitioner. (AR 933.) This finding was supported by Complainant's testimony and statements in interview, by witness testimony, and by Petitioner's statements. (E.g. AR 163 [Director Blakey's summary of her interview with Complainant reporting Complainant experienced anxiety, fear, and panic], 597 [Complainant's testimony that she got an STD test], 705-06 [Nicholas White discussing Complainant's schedule change request], 725 [Witness 6 noting a substantial change in Complainant's voice], 823 [Petitioner: “it ruined our friendship”].)

Third, the Hearing Officer considered Petitioner's past disciplinary record. (AR 933.) She was unaware of any prior discipline. (AR 933.)

Fourth, the Hearing Officer discussed Petitioner's grade level, as the expectation of awareness of the inappropriateness and consequences of his behavior may be impacted by his maturity or experience in the campus community. (AR 933.) Based on the incident occurring near the end of Petitioner's fourth year, the Hearing Officer concluded Petitioner must have attended the University's mandatory training

regarding sexual misconduct at least four times. (AR 933.)

Fifth, the Hearing Officer

weighed the use of force, weapons, foreign objects, coercion, intimidation, threats, or humiliation. (AR 933.) She reiterated her conclusion that Petitioner forcibly penetrated Complainant in spite of her clear rejections. (AR 933; see AR 584.) Consistent with the Complainant's testimony, the Hearing Officer found Petitioner held Complainant down by her neck, flipped her over, and then continued to penetrate her until he saw she was crying heavily. (AR 933; AR 584.)

Sixth, the Hearing Officer

considered serious physical injury and/or intent to cause physical injury. (AR 933.) Here, she reiterated her conclusions that Complainant had to get an STD test and experienced a change in her voice. (AR 933; see AR 597, 725.)

Seventh, the Hearing Officer

discussed premeditated behavior, planning, and/or predatory behavior. (AR 933-34.) She concluded that Petitioner forcibly penetrated Complainant in multiple instances, showing "repetitious predatory behavior." (AR 933-34; see AR 583-84, 594-98.)

Eighth and finally, the Hearing

Officer weighed violation of disciplinary sanctions, including disciplinary probation, suspension, no contact directives, and/or interference with interim measures. (AR 934.) She noted that there were no such violations. (AR 934.)

Petitioner argues that the

penalty of expulsion was excessive. However, based on the Hearing Officer's findings that he forcibly penetrated Complainant's vagina with his penis multiple times in the face of her explicit refusal to have sex, and her further findings on the impact to Complainant, the Court cannot conclude that "no reasonable person could reach the conclusion" that Petitioner should be expelled.

As Petitioner argues, the Hearing

Officer did mention Petitioner's procedural choices in her sanction recommendation. (AR 931-32.) Although this comment is somewhat concerning, the Court, consistent with its fair hearing analysis, understands this comment as a poorly phrased note on Petitioner's credibility rather than an improper consideration.

Regardless, the record demonstrates that the Hearing Officer's evaluation of the relevant factors relied solely on permissible matters and was sufficient to justify her conclusion.

Petitioner has not shown that the University manifestly abused its discretion in deciding to expel Petitioner.

V.

Conclusion

Petitioner has not met his burden to show Respondent abused its discretion either in withholding his degree or expelling him. Nor has Petitioner met his burden to show the proceedings were unfair. The petition for administrative mandamus is DENIED. Pursuant to Local Rule 3.231(n), respondent Board of Trustees of the California State University shall prepare, serve, and ultimately file a proposed judgment.

Date: September 10, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You

should assume that others may appear at the hearing to argue.

If the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Petition states this occurred June 1, 2022, which the Court assumes to be a typographical error.

[2] The Court's

charge is to assess whether the findings have support in the record, not to reweigh credibility. The record reflects that the Hearing Officer relied on testimony and documentary evidence in determining responsibility. Those form the basis of the decision, rather than alleged negative inferences drawn from Petitioner's choices.

[3] Petitioner also

asserts in passing that the Hearing Officer's findings were not supported by the evidence. (Pet. Op. Br. at 14.) Petitioner does not explain what findings were not supported by the evidence, and his general allusion to this standard does not raise the issue. Nonetheless, as the Court discusses, the Hearing Officer's findings are supported by the evidence.

[4] If Petitioner is arguing

that CCR, Title 5, section 41301, subdivision (d) prohibits the University from imposing sanctions against him, the Court disagrees. This provision authorizes sanctions against, among others, enrolled students and graduates awaiting degrees. (5 CCR § 41301(d).) It also permits sanctions for "[c]onduct that threatens the safety or security of the campus community . . . whether it occurs on or off campus." (5 CCR § 41301(d).) Petitioner was first an enrolled student, and then a graduate awaiting his degree. (AR 585, 777.) Sexual assault against a student plainly constitutes conduct that threatens the safety and security of the campus community. Thus, CCR, Title 5, section 41301, subdivision (d) allowed the University to impose sanctions for Petitioner's conduct.